

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SHAMIR ADOLPHUS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. FLORES TAX ID
933781; and P.O. JOHN/JANE DOES # 1-10; the
individual defendant(s) sued individually and
in their official capacities,

Defendants.

SUMMONS

Index No: _____

Date Filed: _____

Basis of Venue
Location of Incident
Brooklyn NY

Jury Trial Demanded

----- X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this
action and to serve a copy of your answer on plaintiff's attorney
within twenty (20) days of the service of this Summons, exclusive of
the day of service (or within thirty (30) days after service is
complete if this Summons is not personally delivered to you within the
State of New York), and in case of your failure to appear or to
answer, judgment will be taken against you by default for the relief
demanded in the Complaint.

DATED: NEW YORK, NY
JULY 26, 2017



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONING LLP
Attorney for Plaintiff
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

P.O. FLORES TAX ID 933781
NYPD P.O. JOHN/JANE DOES # 1-10
73rd Precinct
1470 East New York Avenue
Brooklyn, NY, 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SHAMIR ADOLPHUS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. FLORES
TAX ID 933781; and P.O. JOHN/JANE DOES #
1-10; the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

----- X

Plaintiff SHAMIR ADOLPHUS, by and through his counsel,
Adams & Commissiong LLP alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiff seeks relief for the violation of his
rights secured by the laws of the State of New York; New York
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,
Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiff's claims arise from an incident that
took place on September 1, 2014. During the incident, the City
of New York, and members of the New York City Police Department
("NYPD") subjected plaintiff to, among other things, unlawful
search and seizure, excessive force, failure to intervene, and
implementation and continuation of an unlawful municipal policy,

practice, and custom, and respondeat superior liability.

Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County.

PARTIES

3. Plaintiff Shamir Adolphus is an African-American male, who is a resident of the State of New York, Kings County.

4. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

5. At all times alleged herein, defendants NYPD P.O. Flores Tax ID 933781 and John/Jane Does #1-10 were New York City Police Officers employed with the 73rd Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

6. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

7. On September 1, 2014 at and in the vicinity of Atlantic Avenue and Classon Avenue, Kings County, Brooklyn, New York, and the 73rd Precinct, Brooklyn, New York, several police officers operating from the 73rd Precinct, including, upon information and belief, defendants NYPD P.O. Flores and P.O. John/Jane Does #1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

8. On September 1, 2014, at approximately 7:00 p.m., at and in the vicinity of Atlantic Avenue and Classon Avenue, Kings County, Brooklyn, New York P.O. Flores and P.O. John/Jane Does #1-10, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime, unlawfully arrested plaintiff.

9. Plaintiff was driving home from work.

10. On his way home he had planned to go to Church on Classon Avenue.

11. Plaintiff was driving on Atlantic Avenue, and as he approached Classon Avenue, he attempted to get into the turning lane to make a left turn.

12. As plaintiff was attempting to get into the turning lane, an officer told plaintiff that he could not make a

left turn on Classon Avenue and was told to turn at Bedford Avenue.

13. As plaintiff was speaking to the officer, Officer Flores who would ultimately unlawfully arrest plaintiff, came over to plaintiff's driver's side window, told plaintiff, move your fucking car", and hit plaintiff's arm twice.

14. Plaintiff asked Officer Flores not to hit him, and said that he would call his lawyer. Officer Flores replied, "I don't give a fuck about your lawyer", or words to that effect.

15. Officer Flores ordered plaintiff out of the car.

16. Once the officer ordered plaintiff out of the car, plaintiff was not free to disregard the defendants' questions, drive away, or leave the scene.

17. Plaintiff complied and attempted to take a picture of the officer with his phone.

18. Officer Flores then told plaintiff, he was under arrest.

19. Plaintiff asked why he was being arrested.

20. Officer Flores then grabbed plaintiff's arm, hit plaintiff's wrist with the handcuffs numerous times, pulled his arms behind his back and then placed excessively tight handcuffs on plaintiff.

21. Officer Flores then pushed plaintiff into a building.

22. Officer Flores then ordered plaintiff to go into a police van.

23. Officer Flores then mocked plaintiff's religion and told him to "treat the police van like a church van".

24. Plaintiff was then ordered out of the police van, where he was searched and then placed back into the police van.

25. Officer Flores then falsely and maliciously issued plaintiff two traffic tickets.

26. The defendants made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime.

27. The officers that did not touch plaintiff failed to protect him from these illegal acts.

28. The defendants made these false allegations to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

29. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

30. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

31. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively

reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

32. Despite his pleas, plaintiff was found guilty of a traffic violation based on the perjured testimony of the arresting officer, however one of the tickets was dismissed.

33. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of their rights.

34. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

35. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

36. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

FIRST CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

37. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

38. Defendants unlawfully stopped and searched plaintiff without cause, a warrant, or consent.

39. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNREASONABLE FORCE)**

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. The individual defendants' use of force upon plaintiff was objectively unreasonable.

42. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

43. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

44. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant

to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM

(FAILURE TO INTERVENE)

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

47. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FOURTH CLAIM

(RETALIATION)

48. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

49. Plaintiff exercised free speech during the incident by, among other things, demanding that the individual defendants explain the basis for their unlawful actions.

50. Plaintiff's use of free speech was a motivating factor in the individual defendants' decision to search and detain plaintiff.

51. Accordingly, the individual defendants are liable to plaintiff under the First Amendment to the United States Constitution.

FIFTH CLAIM**(MONELL CLAIM)**

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendant City of New York, through a policy, practice, and custom, directly caused the constitutional violations suffered by plaintiff.

54. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs, and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

55. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

56. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly

retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

57. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice, and/or policy) would stop, arrest, and prosecute innocent individuals, based on pretexts and false evidence.

58. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

59. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault, and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011,

Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

60. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

61. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

62. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
July 26, 2017

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiff
65 Broadway Suite 715
New York, New York 10006
212-430-6590
martin@amcmlaw.com
By:


MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SHAMIR ADOLPHUS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. FLORES TAX ID
933781; and P.O. JOHN/JANE DOES # 1-10; the
individual defendant(s) sued individually and
in their official capacities,

Defendants.

----- X

STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to
practice law in the State of New York, hereby affirms pursuant to the
C.P.L.R. and subscribing as true under the penalties of perjury as
follows:

That the Affirmant is a member of the law firm Adams &
Commissiong LLP, the attorneys of record for the plaintiff in the
above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to
the matters stated to be alleged upon information and belief, and that
as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant
instead of the plaintiff is because the plaintiff does not reside
within the County in which the firm of Adams & Commissiong LLP
maintain their office.

The grounds of Affirmant's belief as to all matters in the
complaint not stated to be upon his knowledge are based upon
conversations with plaintiff, and a review of records related to this
action.

DATED: New York, New York
July 26, 2017



MARTIN E. ADAMS, ESQ